

**Justification for an Exception to Fair Opportunity
Federal Acquisition Regulation (FAR) 16.505(b)(2)(ii)(B)**

1. **Identification of the Agency and Contracting Activity:** The requiring activity is the Defense Agency (DHA) Infrastructure and Operations Division (J-6); the contracting activity is the Defense Health Agency Contracting Activity, Falls Church, Virginia.
2. **Nature and/or Description of Action being Approved:** This is a justification for an exception to fair opportunity to award a new task order using the Department of Defense (DoD) Wireless Services Spiral 4 Indefinite Delivery, Indefinite Quantity (IDIQ), Multiple Award Contract. The placement of a firm fixed price order is anticipated.
3. **Description of Supplies/Services and Estimated Value:** The proposed contractor is the large business, Verizon Wireless and this acquisition is to provide continued support for the Verizon Wireless data, voice, and text devices and lines of service to support DHA personnel. The contractor shall provide the necessary administrative and operational cell phone support to sustain ongoing program management, support projects, mission, and functions of the organization that support DHA civilians and service members on the Verizon 5G network, regardless of their location.

The anticipated Period of Performance is for one (1), 12-month base period plus four (4), 12-month Option period. The estimated total value for this action is [REDACTED] and will be funding using Operation and Maintenance funds.

Period	Period of Performance	Estimated Value	Type of Funding
Base Period	02 May 2025 to 01 May 2026	[REDACTED]	O&M
Option Period 1	02 May 2026 to 01 May 2027	[REDACTED]	O&M
Option Period 2	02 May 2027 to 01 May 2028	[REDACTED]	O&M
Option Period 3	02 May 2028 to 01 May 2029	[REDACTED]	O&M
Option Period 4	02 May 2029 to 01 May 2030	[REDACTED]	O&M
Total		[REDACTED]	O&M

4. **Exception to Fair Opportunity:** This acquisition is conducted under the authority of 41 U.S.C. 4101, and FAR 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quantity required because the supplies or services are unique or highly specialized.



5. Rationale Supporting the Exception to Fair Opportunity:

The DoD Chief Information Officer (CIO) policy memorandum dated May 23, 2024, provides guidance requiring all DoD Components to procure unclassified wireless mobile services and devices for use within the United States (U.S) and U.S territories through a single department-wide contract vehicle called Spiral 4. There are seven (7) providers who have a contract under the Spiral 4 IDIQ contract. However, Verizon Wireless is the only provider that can provide 5G wireless services in the domestic and international locations without DHA personnel experiencing disruption in their wireless services.

Verizon Wireless is the incumbent for the existing task HT001124F0015 in which they are currently providing wireless data, voice, text devices and lines of service on the 5G Network. Verizon Wireless service is instrumental in assisting DHA personnel with performing mission critical work on a day-to-day basis and under emergency and extraordinary situations. Verizon Wireless is the only awardee under the Spiral 4 IDIQ contract that can provide the wireless services required at the level of quality required because the supplies or services ordered are unique in nature.

Additionally, under the expiring task order, HT0011-24-F-0015, DHA completed a device refresh, upgrading all cell phones and MiFi devices to 5G Network approved devices, one (1) generation behind current market offering; eliminating the need to upgrade devices or transition them to a new contractor within the next two (2) to three (3) years. The disruption caused by switching carriers and the administrative burden of returning 2,000 plus devices would impact mission achievement without providing off-setting benefit to the Government; therefore, the Government should continue to fulfill this requirement with the current contractor.

6. Other Facts:

a. Procurement History:

(1) Is this a new requirement? No.

(2) If 6.a.(1) is No, was the action just prior to this one competed? No. This is a follow-on action to the task order, HT001124F0015. The task order was previously awarded using an exception to fair and opportunity to the large business, Verizon Wireless.

(3) If 6.a.(2) is Yes, what has changed where this action cannot be competed? Not Applicable.

b. Additional Information: The Spiral 4 IDIQ contract currently does not include any contract provisions that allows for the sale or exchange of surplus, damaged, or outdated wireless devices.

7. Actions to Remove or Overcome any Barriers to Competition: The Contracting Officer will continue to put forth effort to determine the best options available to procure any follow-on

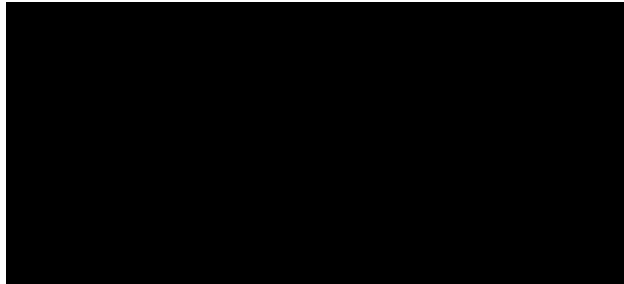
mobile devices and services under the Spiral 4 IDIQ. If there are no changes made to the policy landscape, the DHA will decide at that time if the follow-on task order will be competed amongst the seven (7) providers under the Spiral 4 IDIQ contract.

8. Market Research:

Market Research was conducted from 19 November 2024 to 10 January 2025 in accordance with FAR Part 10. The DoD CIO memo dated 23 May 2024 requires all Components to procure unclassified wireless mobile services and devices for use with the U.S. and U.S. territories through the Spiral 4 IDIQ contract. There are seven (7) providers who have a contract under the Spiral 4 contract. The Spiral 4 Program Level IDIQ contract holders include large and small businesses. AT&T, Hughes Network, T-Mobile, and Verizon are large businesses and Real Mobile, MetTel, and WidePoint are small businesses. However, Verizon Wireless is the only provider that can provide 5G wireless services in the domestic and international locations without DHA personnel experiencing disruption in their wireless services.

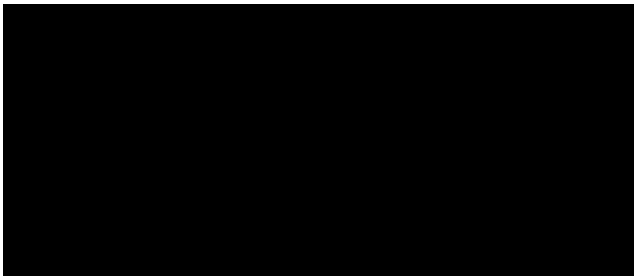
9. Technical Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



10. Requirements Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



11. Fair and Reasonable Cost Determination: I hereby determine the anticipated cost to the Government for this contract action will be fair and reasonable.

Basis for Determination: The Contracting Officer will determine the anticipated cost to the Government to be fair and reasonable by comparing the proposed rates to the current and historical pricing of the same required services needed in this follow-on task order. Certified cost or pricing data is not required in accordance with FAR 15.403-1(c)(3).

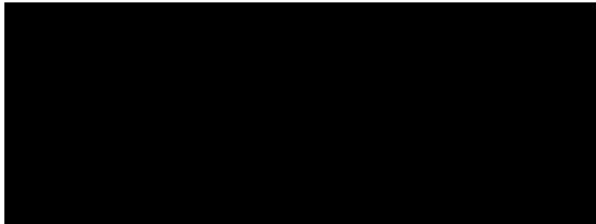
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Destiny Wood
Contracting Officer
Defense Health Agency

12. Legal Review:

I have reviewed this justification and have found it to be legally sufficient.



13. Contracting Officer Certification: I certify this justification is accurate and complete to the best of my knowledge and belief.

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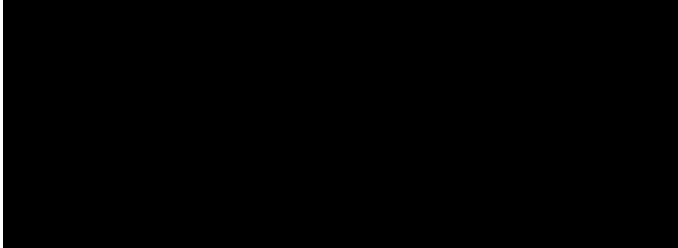
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Review

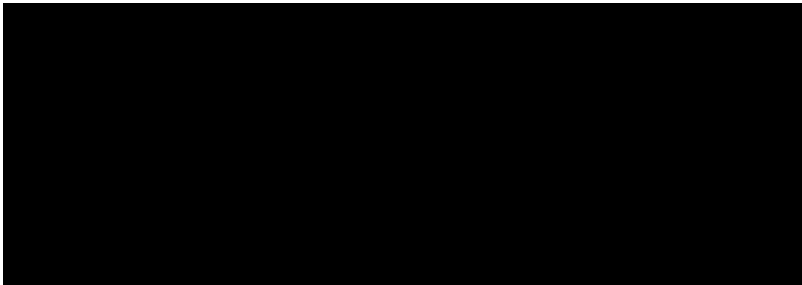
I have reviewed this justification and find it adequate to support the exception to fair opportunity.

Concurrence



Approval

Based on the foregoing justification, I hereby approve the procurement of Verizon Wireless Services on an exception to fair opportunity basis pursuant to the authority of FAR 16.505(b)(2)(i)(B), only one awardee is capable of providing the supplies or services required, subject to availability of funds, and provided that the supplies or services herein described have otherwise been authorized for acquisition.



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Source Selection Information - See FAR 2.101 and 3.104-4